

26STCV06554 26STCV06554

County: los-angeles

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Case Number: 26STCV06554 Hearing Date: September 9, 2026 Dept: 512

HEARING DATE: Weds., September 9, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: A.A.

Rocha Construction v. Zemet, et al. COMP.

FILED: 02-27-26

CASE NUMBER: 26STCV06554

NOTICE: OK

PROCEEDINGS: DEMURRER

TO THE COMPLAINT

MOVING PARTY: Defendants

Kaitlin Zemet and James R. Zemet

RESP. PARTY: Plaintiff A.A. Rocha Construction

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendants Kaitlin Zemet and James R.

Zemet's Demurrer to Plaintiff's Complaint is OVERRULED IN PART and SUSTAINED IN PART.

The Demurrer is SUSTAINED WITH 30

DAYS' LEAVE TO AMEND as to the fourth, fifth, and eighth causes of action. The Demurrer is otherwise OVERRULED.

Moving parties are ordered to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 16, 2026 ☐ Late ☐ None

REPLY: Filed
on August 3, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On February 27, 2026, Plaintiff A.A.

Rocha Construction ("Plaintiff") filed the instant action against Defendants Kaitlin Zemet and James R. Zemet ("Defendants"), alleging causes of action for breach of oral and written contracts; work, labor, and services rendered/agreed price; work, labor, and services rendered/reasonable value; unjust enrichment; and foreclosure of mechanic's lien. (Compl.)

On March 10, 2026, Plaintiff filed a
Lis Pendens.

On April 24, 2026, Defendants filed the instant Demurrer to Plaintiff's Complaint (the "Demurrer").

On June 16, 2026, Plaintiff filed an Opposition.

On June 22, 2026, Defendants rescheduled the hearing on the Demurrer from June 30, 2026, to August 10, 2026.

On June 24, 2026, Defendants filed a Supplemental Declaration in support of the Demurrer.

On August 3, 2026, Defendants filed a Reply and Supplemental Declaration.

On August 10, 2026, the Court continued the hearing on the Demurrer due to defective notice of hearing. (8/10/26 Order.)

That same day, Defendants filed and served Notice of Ruling.

II. Procedural Issues

As an initial matter, the Court finds the previous notice of hearing defects have been remedied.

III. Legal Standard

"As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*)

The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III.

Discussion

A. Meet and Confer

Code of Civil Procedure section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, Defendants submit a declaration

stating defense counsel attempted to meet and confer with Plaintiff's counsel by way of email and attached letter to no response. (Demurrer, Croddy Decl.)

However, Defendants submitted a supplemental declaration stating the parties spoke telephonically on June 30, 2026, regarding the issues raised in the Demurrer to no avail. (Reply, Supp. Croddy Decl.)

While the Court finds the requirement to meet and confer prior to filing the Demurrer was not satisfied, the Court acknowledges the parties met and conferred prior to the instant hearing date.

Further, the Court notes it may not overrule a demurrer for failure to adequately meet and confer. (Code Civ. Proc., § 430.41(a)(4).)

B. Demurrer

Statute of Frauds

For breach of a written contract, the statute of limitations is four years. (Code. Civ. Proc., § 337, subdivision (a).) For breach of a contract "not founded upon an instrument of writing" absent certain exceptions, the statute of limitations is two years. (Code Civ. Proc., § 339(1).)

Civil Code section 1624 states that certain contracts are invalid unless they, or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent. These contracts include "[a]n agreement that by its terms is not to be performed within a year from the making thereof." (Civ. Code, § 1624, subd. (a)(1).)

Here, the Complaint alleges the parties entered into a written agreement in April 2025 and an accompanying oral agreement sometime thereafter, and a written agreement in October 2025 and a separate oral agreement. (See Compl., pp. 3-6.) The Complaint does not allege when the breach of the written or oral agreements occurred. Further, the Court also does not find that the kind of contracts alleged in the Complaint could not be completed in one year. (Civ. Code, § 1624, subd. (a)(1).)

Thus, the Complaint as pled does not demonstrate that the instant action is barred by the Statute of Frauds as a matter of law.

Causes of Action Nos. 1-4 – Breach of Contract (Written and Oral); Work, Labor, and Services Rendered

A cause of action for breach of contract must plead “(1) the contract, (2) plaintiff’s performance or excuse for non-performance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.” (*Acoustics, Inc. v. Trepte Constr. Co.* (1971) 14 Cal.App.3d 887, 913.) A written contract can be pled by alleging its making and attaching a copy to the complaint or by alleging the making and the substance of the relevant terms. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.) The terms of an “oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640.) Finally, an implied-in-fact contract can be alleged based on the promisor’s conduct. (*Gomez v. Lincare, Inc.* (2009) 173 Cal.App.4th 508, 525.)

Here, the Complaint states the parties entered into a written contract the terms of which became effective on or around April 16, 2025 (the “April Agreement”). (Compl., ¶ 11.) The April Agreement stated Plaintiff was to construct an additional dwelling unit (“ADU”) on Defendants’ property of 3526 and 3528 7th Avenue, Los Angeles CA 90018 (the “Property”) and provide related labor, material, equipment, and services for the ADU; in exchange, Defendants were to pay \$418,132.00 for Plaintiff’s services. (Compl., ¶¶ 4, 11-12.) “Plaintiff has performed all conditions and obligations to be performed on its part, except for those excused due to the actions and/or inactions of Defendants.” (Compl., ¶ 14.) However, Defendants breached the April Agreement by failing to pay Plaintiff for all services, materials, labor, and equipment Plaintiff provided to the ADU in the amount of at least \$134,892.10. (Compl., ¶ 16.)

The Court finds these facts suffice to plead breach of a written agreement for Cause of Action No. 1.

In relation to the April Agreement,

the Complaint states the parties entered into an oral agreement whereby Plaintiff was to supply certain additional labor, materials, and supplies to Defendants for the ADU on Defendants' Property in exchange for Defendants' agreement to pay; Plaintiff performed all conditions and covenants to be performed, except those that were excused; and Defendants' breached the agreement by "failing and refusing and continuing to fail and refuse to pay Plaintiff all amounts due." (Compl., ¶¶ 17-21.)

The Court finds these facts suffice to plead breach of an oral agreement for Cause of Action No. 2.

The Complaint states the parties entered into a written contract on or around October 29, 2025, whereby Plaintiff was to remodel the main house on the Property in exchange for \$12,650.00 (the "October Agreement"). (Compl., ¶¶ 4, 23-24.) "Plaintiff has performed all conditions and obligations to be performed on its part with respect to the MAIN HOUSE AGREEMENT, except for those excused due to the actions and/or inactions of Defendants." (Compl., ¶ 26.) However, Defendants breached the October Agreement by failing to pay Plaintiff for all services, materials, labor, and equipment provided by Plaintiff, and Plaintiff has suffered damages therefrom in the minimum amount of \$1,200.10, plus interest. (Compl., ¶ 28.)

The Court finds these facts suffice to plead breach of a written agreement for Cause of Action No. 3.

The Complaint also pleads the parties entered into an oral agreement whereby Plaintiff was to supply certain labor, materials, and supplies to Defendants to Defendants in exchange for Defendants' agreement to pay; Plaintiff performed all conditions and covenants to be performed, except those that were excused; and Defendants' breached the agreement by "failing and refusing and continuing to fail and refuse to pay Plaintiff all amounts due it." (Compl., ¶¶ 29-33.) However, given the generality of the facts pled regarding this cause of action, the Court is unable to ascertain whether this cause of action is duplicative of the second cause of action.

As such, the Court finds these facts are insufficient to plead a non-duplicative breach of oral agreement for Cause of Action No. 4.

Thus, the Demurrer is OVERRULED as to the first, second, third, and fifth causes of action and SUSTAINED as to the fourth cause of action.

Cause of Action Nos. 5, 6 – Work, Labor, and Services Rendered; Common Count

The required elements of a common count claim are “ ‘(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment. A cause of action for money had and received is stated if it is alleged the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff.’ ” (Farmers Insurance Exchange v. Zerín (1997) 53 Cal.App.4th 445, 460, citations omitted.)

“A common count is not a specific cause of action, however; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory. When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable.” (McBride v. Boughton (2004) 123 Cal.App.4th 379, 394.)

Here, the Complaint states Defendants are indebted to Plaintiff for approximately \$134,892.10 for the use of Plaintiff’s services, and Defendants have not paid Plaintiff the amount owed despite demand. (See Compl., ¶¶ 37-39.)

Further, the Court finds the common count is seeking the same recovery demanded in the breach of contract cause(s) of action and is based on the same facts, and the Demurrer is overruled as to three of those causes of action. (See McBride, supra, 123 Cal.App.4th at p. 394.)

Thus, the Demurrer is OVERRULED as to the sixth cause of action.

However, the Court interprets the

fifth cause of action for “Work, Labor, and Services/Agreed Price” to be duplicative of the sixth cause of action, and the Opposition fails to demonstrate otherwise.

Thus, the Demurrer is SUSTAINED as to the fifth cause of action.

Cause of Action No. 7 – Unjust Enrichment

There is a split of authority in California courts regarding whether unjust enrichment is a cause of action. (See *Ghirardo v. Antonioli* (1996) 14 Cal.4th 39, 50, 52, 53-55 [recognizing split in authority]; compare *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 [“ ‘[T]here is no cause of action in California for unjust enrichment’ ”] with *Lyles v. Sangadeo-Patel* (2014) 225 Cal.App.4th 759, 769 [analyzing the elements for an unjust enrichment cause of action].)

This Court follows the line of cases holding that unjust enrichment is a general principal synonymous with restitution, which can be sought as a remedy for various causes of action, instead of as a separate cause of action. (See *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231.)

“As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract.” (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370.)

However, “a party to an express contract can assert a claim for restitution based on unjust enrichment by ‘alleg[ing] in that cause of action] that the express contract is void or was rescinded.’ [Citation.] A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement.” (*Rutherford Holdings, LLC v. Plaza Del Ray* (2014) 223 Cal.App.4th 221, 231.)

Here, the Court finds the Complaint alleges express contracts that allows for unjust enrichment. (See also *McBride*

v. Boughton (2004) 123 Cal.App.4th 379, 388.)

Thus, the Demurrer is OVERRULED as to the seventh cause of action.

Cause of Action No. 8 – Foreclosure of Mechanic's Lien

Article XIV, section 3, of the California Constitution states that “[m]echanics, persons furnishing materials, artisans, and laborers of every class, shall have a lien upon the property upon which they have bestowed labor or furnished material for the value of such labor done and material furnished; and the Legislature shall provide, by law, for the speedy and efficient enforcement of such liens.”

Under Civil Code section 8400, a “person that provides work authorized for a work of improvement, including, but not limited to, the following persons, has a lien right under this chapter: Direct contractor... Material supplier,” amidst others. (Civ. Code, § 8400, subds. (a), (c).)

“A claimant may enforce a lien only if the claimant has given preliminary notice to the extent required by Chapter 2 (commencing with Section 8200) and made proof of notice.” (Civ. Code, § 8410.)

Under Civil Code section 8412, a direct contractor may not enforce a lien unless the contractor records a claim of lien after the contractor completes the direct contract, and before the earlier of the following times: “(a) Ninety days after completion of the work of improvement. (b) Sixty days after the owner records a notice of completion or cessation.” (Civ. Code, § 8412.)

Under Civil Code section 8414, the claimant other than a direct contractor may not enforce a lien unless the claimant records a claim of lien within the following times:

(a) After the claimant ceases to provide work.

(b) Before the earlier of the following times:

(1) Ninety days after completion of the work of improvement.

(2) Thirty days after the owner records a notice of completion or cessation.

(Civ. Code, § 8414.) Subdivision (a) is the earliest date a lien can be recorded, and subdivision (b) is the last date a lien can be recorded.

Here, the Complaint states that Plaintiff performed construction work related to an ADU and main house on Defendants' Property, and Plaintiff filed a lien, with instrument number 20250864478, on the Property on December 2, 2025. (Compl., ¶¶ 43-50.)

However, the Complaint fails to specify whether Plaintiff is a direct contractor or a claimant other than a direct contractor, and whether the lien was timely filed under either Civil Code section 8412 or 8414.

Thus, the Court finds the Complaint fails to allege sufficient facts to state a foreclosure of mechanic's lien cause of action.

The Demurrer is SUSTAINED as to the eighth cause of action.

Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman, supra, 18 Cal.3d at p. 348.)

As this is the first demurrer to the operative complaint, and Plaintiff requests leave to amend in the Opposition, the Court finds leave to amend appropriate at this time.

Thus, the Demurrer is
SUSTAINED WITH LEAVE TO AMEND as to the fourth, fifth, and eighth causes of
action.

The
Demurrer is otherwise OVERRULED.

IV.
Conclusion
& Order

For the foregoing reasons, Defendants
Kaitlin Zemet and James R. Zemet's Demurrer to Plaintiff's Complaint is OVERRULED
IN PART and SUSTAINED IN PART.

The Demurrer is SUSTAINED WITH 30
DAYS' LEAVE TO AMEND as to the fourth, fifth, and eighth causes of action. The
Demurrer is otherwise OVERRULED.

Moving parties are ordered to give
notice.